

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NETCYCLE TRADING CORP., *REVOCATION OF OCEAN
TRANSPORTATION INTERMEDIARY LICENSE NO. 021597NF*

DOCKET NO. 24-15

Served: July 18, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

INITIAL DECISION REVOKING OCEAN TRANSPORTATION LICENSE¹

I. INTRODUCTION

A. Summary

The Bureau of Certification and Licensing (“BCL”) and the Office of Enforcement (“OE”) within the Bureau of Enforcement, Investigations, and Compliance (“BEIC”) at the Federal Maritime Commission (“FMC” or “Commission”) contend that Respondent Netcycle Trading Corp. (“Netcycle”) should have its ocean transportation intermediary (“OTI”) license revoked. Netcycle requested a hearing on the proposed revocation of its license.

Respondent Netcycle is a Florida corporation, licensed by the Commission as an ocean transportation intermediary on May 13, 2008. In the Form FMC-18 submitted by Netcycle when it applied for an OTI license (“OTI license application”), Netcycle listed Nadia E. Ledesma as its President/Secretary and qualifying individual (“QI”), and the Commission approved Ms. Ledesma as its QI. BEIC 46.

As explained more fully below, BEIC alleges that Ms. Ledesma was indicted and convicted of a criminal offense, which she failed to report to the Commission. As a result, BCL notified Netcycle on March 8, 2024, that it intended to revoke Netcycle’s OTI license because it had determined that Netcycle had violated 46 C.F.R. § 515.16(a)(1) of the Commission’s regulations by violating the Shipping Act, or any other statute or Commission order or regulation; 46 C.F.R. § 515.16(a)(4), by not being qualified to render intermediary services; and 46 C.F.R. § 515.20(e), by failing to report material changes to the Commission. As discussed below in greater detail, the evidence supports a finding that Netcycle’s OTI license should be revoked.

¹ This initial decision will become the decision of the Commission in the absence of review by the Commission. 46 C.F.R. § 502.708(c). Any party may file exceptions to this decision within twenty-two days of the date of service. 46 C.F.R. § 502.708(c).

B. Procedural History

On March 21, 2024, the Secretary issued a Notice of Hearing Request and Assignment, stating that on March 8, 2024, BCL had notified Netcycle by letter that the Commission intended to revoke its OTI license and that on March 19, 2024, Netcycle had requested a hearing on the proposed revocation pursuant to the Commission's Rules at 46 C.F.R. § 515.17 and 46 C.F.R. Part 502, at Subpart X of the Commission's Rules of Practice and Procedure. In addition, the Secretary assigned this proceeding to the Office of Administrative Law Judges for adjudication, pursuant to Commission Rule 702(a). 46 C.F.R. § 502.702(a).

On March 22, 2024, an Order Designating Administrative Law Judge and a Notice and Initial Order ("Initial Order") were issued notifying BEIC of Netcycle's hearing request and instructing BEIC to file a copy of the notice given to Netcycle and BCL's materials supporting the notice, by April 16, 2024, as well as serve the same documents on Netcycle pursuant to 46 C.F.R. § 502.702(b). The initial order also stated that BEIC "may file a brief with legal arguments, proposed findings of fact, or additional information." Initial Order at 1.

On April 16, 2024, BEIC filed the Notice of Revocation issued to Netcycle by BCL and an appendix of materials supporting the Notice ("BEIC Submission"). BEIC indicated that it respectfully declined the opportunity to file a brief and that it would submit its reply within 20 days of Netcycle's response. BEIC Submission at 2.

Later on April 16, 2024, a Notice of Right to Respond and to Reply was issued, notifying Netcycle that it should respond in support of its license by May 16, 2024; that its "written response must include all information and argument that it wants the presiding officer to consider, including a brief with legal arguments, proposed findings of fact, and an appendix with supporting documents;" and that "[f]ailure to respond may result in a default decision upholding the license revocation." Notice of Right to Respond and to Reply at 1. BEIC was advised that it could file a reply to Netcycle's response within twenty days of Netcycle's filing. *Id.*

No response was filed by Netcycle by May 16, 2024. On May 21, 2024, the Office of Administrative Law Judges emailed the Respondent to determine if it intended to file any response and later that afternoon, its counsel indicated that Respondent intended to respond.

On May 31, 2024, Netcycle filed a motion for acceptance of late filing with its proposed response ("Opposition"). On June 5, 2024, BEIC filed an opposition to Respondent's motion. On June 12, 2024, an order was issued granting Netcycle's motion to accept late filing and requiring BEIC to file its reply brief and appendix by July 2, 2024. The Opposition included a one-page attachment without any Bates number ("Opposition, attachment").

On June 27, 2024, BEIC submitted a reply to Netcycle's opposition ("Reply") and an additional exhibit: Ms. Ledesma's factual proffer supporting her guilty plea.

Pursuant to Subpart X, Rule 708, this initial decision is due within forty days of BEIC's Reply, or by August 6, 2024. 46 C.F.R. § 502.708(a).

C. Argument of the Parties

Netcycle asserts in its hearing request that it had a well-maintained reputation and clear record since 2008 and is a small family business that has supported many families. Hearing Request at 1. Netcycle President Nadia Ledesma alleges that an ex-employee used the business for unlawful purposes and that “as principal officer of corporation I assumed the responsibility” and that she has handed over the position of president to her stepson, Carlos Ledesma. Hearing Request at 1.

BEIC asserts in its initial submission:

BCL issued a Notice of Intent to Revoke the ocean transportation intermediary (OTI) license of Netcycle due to (1) the criminal guilty plea by Netcycle’s listed President, Secretary and Qualifying Individual (QI) in the U.S. District Court for the Southern District of Florida and (2) Netcycle’s failure to report material changes to the Commission, including any criminal indictment or conviction of a licensee, QI, or officer under 46 C.F.R. § 515.20(e). Beyond the failure to report the criminal charges, the nature of the charges and guilty plea—conspiracy to export stolen vessel parts and smuggle goods from the United States in violation of 18 U.S.C. § 371—led BCL to conclude that Netcycle was no longer qualified to provide ocean transportation intermediary services within the meaning of 46 U.S.C. § 40903 and 46 C.F.R. § 515.16(a)(1) and (4).

BEIC Submission at 1-2. BEIC submitted an appendix of exhibits, including BCL’s notice of intent to revoke, indictment of Nadia Ledesma, Department of Justice press release, plea agreement, judgment, and Netcycle’s Form 18 OTI application. BEIC 3-55.

Netcycle, in its Opposition, does not dispute “that Netcycle’s listed President, Secretary and Qualifying Individual (QI) Ms. Nadia Ledesma, was indicted as alleged” and also does not dispute “that Ms. Ledesma failed to report the matter to the FMC under a mistaken belief that it was unnecessary.” Opposition at 2. Rather, Netcycle contends that “license revocation is not an automatic penalty” and argues that Ms. Ledesma should be allowed the “opportunity to fully divest ownership, resign her position as QI and for Netcycle to quickly file an FMC-18 designating Mr. Carlos Ledesma Jr. as replacement QI.” Opposition at 3.

BEIC contends in its Reply that Netcycle’s “license should be revoked due to the felony criminal conviction related [to] the business of serving as an OTI, failures to notify the Bureau of Certification and Licensing (BCL) of material changes, and a lack of the necessary character to render OTI services” and that “revocation is clearly warranted by the Shipping Act of 1984 (Shipping Act), Federal Maritime Commission (FMC or Commission) regulations, and established legal precedent.” Reply at 1.

II. LEGAL AND FACTUAL FINDINGS

A. Controlling Legal Authority

The Shipping Act grants authority to revoke an OTI’s license under certain conditions:

The Federal Maritime Commission, after notice and opportunity for a hearing, shall suspend or revoke an ocean transportation intermediary's license if the Commission finds that the ocean transportation intermediary –

- (1) is not qualified to provide intermediary services; or
- (2) willfully failed to comply with a provision of this part or with an order or regulation of the Commission.

46 U.S.C. § 40903(a).

The Commission's regulations also address when a license may be revoked or suspended, stating:

A license may be revoked or suspended for any of the following reasons:

- (1) Violation of any provision of the Act, or any other statute or Commission order or regulation related to carrying on the business of an ocean transportation intermediary;
- (2) Failure to respond to any lawful order or inquiry by the Commission;
- (3) Making a materially false or misleading statement to the Commission in connection with an application for a license or an amendment to an existing license;
- (4) A Commission determination that the licensee is not qualified to render intermediary services; or
- (5) Failure to honor the licensee's financial obligations to the Commission.

46 C.F.R. § 515.16(a). Reasons 1 and 4 are alleged here.

Rule 515.20's provisions regarding changes in organization state:

- (e) **Other changes.** Other changes in material fact of a licensee shall be reported within thirty (30) days of such changes, in writing by mail or email (bcl@fmc.gov) to the Director, Bureau of Certification and Licensing, Federal Maritime Commission, Washington, DC 20573. Material changes include, but are not limited to: Changes in business address; any criminal indictment or conviction of a licensee, QI, or officer; any voluntary or involuntary bankruptcy filed by or naming a licensee, QI, or officer; changes of five (5) percent or more of the common equity ownership or voting securities of the OTI; or, the addition or reduction of one or more partners of a licensed partnership, one or more members or managers of a Limited Liability Company, or one or more branch offices. No fee shall be charged for reporting such changes.

46 C.F.R. § 515.20(e).

B. Burden of Proof

Under the Administrative Procedure Act (“APA”), an Administrative Law Judge may not issue an order “except on consideration of the whole record or those parts thereof cited by a party and supported by and in accordance with the reliable, probative, and substantial evidence.” 5 U.S.C. § 556(d); *see also Steadman v. SEC*, 450 U.S. 91, 102 (1981).

This initial decision addresses only material issues of fact and law. Administrative adjudicators are “not required to make subordinate findings on every collateral contention advanced, but only upon those issues of fact, law, or discretion which are ‘material.’” *Minneapolis & St. Louis R.R. Co. v. United States*, 361 U.S. 173, 193-94 (1959). To the extent individual findings of fact may be deemed conclusions of law, they shall also be considered conclusions of law. Similarly, to the extent individual conclusions of law may be deemed findings of fact, they shall also be considered findings of fact.

C. Findings of Fact

1. Netcycle submitted an FMC-18 application for a license as an OTI on or about April 28, 2008. BEIC 5, 41-55.
2. Netcycle’s OTI application stated that Netcycle was incorporated in Florida on January 27, 2006. BEIC 44.
3. Netcycle’s OTI application listed Nadia E. Ledesma as the President/Secretary, one hundred percent owner, and Qualifying Individual. BEIC 46, 53.
4. Netcycle’s OTI application listed Fernando Rincon as the Vice President. BEIC 53.
5. Netcycle’s OTI application answered “No” to the question of whether the “applicant or any of the applicant’s partners, officers, directors, or stockholders [have] ever . . . been ARRESTED, CHARGED, CONVICTED OF, OR FORFEITED COLLATERAL for any FELONY, MISDEMEANOR, OR OTHER VIOLATION?” excluding minor traffic violations or any incident prior to the person’s 21st birthday. BEIC 45.
6. Netcycle’s OTI license was not included in the record. Official notice is taken that FMC’s OTI list, available on its website, shows organization and license number 021597 for Netcycle Trading Corp., located in Miami, FL, with Nadia Ledesma listed as QI and President/Secretary. <https://www2.fmc.gov/oti> (last visited July 5, 2024).
7. It appears that payment was received and the license granted on May 13, 2008. BEIC 5, 42.
8. On June 21, 2022, an indictment in the United States District Court for the Southern District of Florida, case number 22-20269-CR-SCOLA/Goodman, lists four Defendants, including Nadia Esperanza Ledesma. BEIC 8.

9. On March 10, 2023, Nadia Esperanza Ledesma signed a factual proffer for Defendant's change of plea, which was also signed by her attorney and the Assistant United States Attorney. BEIC 62.
10. From April 2015 to 2018, Ms. Nadia Ledesma willfully participated in a criminal conspiracy to export stolen outboard motors. BEIC 57.
11. Ms. Ledesma's husband and former co-owner and Netcycle warehouse manager, Carlos Ledesma, was also charged in the conspiracy, as well as others. BEIC 57-58.
12. Evidence seized pursuant to a search warrant executed at Netcycle shows that Carlos and Nadia Ledesma used Netcycle to export nearly 600 stolen outboard engines to Mexico. BEIC 59.
13. Netcycle's email, office phones, employees, warehouse, and office spaces were used in furtherance of the conspiracy. BEIC 60-61.
14. Netcycle records indicate that the company charged \$480,197.68 for exporting the stolen engines from 2015 to 2018 and that most of the payments were in cash. BEIC 61.
15. Nadia Ledesma filled out documents that were fabrications and she submitted electronic export information based on the false bill of sale with a fabricated value of the engines. BEIC 62.
16. Ms. Ledesma received at least \$48,064.79 as proceeds of the offense. BEIC 61.
17. A plea agreement dated March 10, 2023, states that Nadia Esperanza Ledesma agrees to plead guilty to count 1 of the indictment, which charges the defendant with conspiring with others to export boat engines and parts that were stolen. BEIC 25.
18. Judgment in case number 1:22-CR-20269RNS(2), dated May 23, 2023, states that defendant Nadia Esperanza Ledesma pleaded guilty to count 1 of the indictment, 18 U.S.C. § 371 - Conspiracy to export stolen vessel parts and to smuggle goods from the United States and that counts 2 through 10 are dismissed. BEIC 34.
19. Defendant Nadia Esperanza Ledesma was sentenced to imprisonment for 18 months, starting May 15, 2025, followed by one year of supervised release. BEIC 35-38.
20. Defendant Nadia Esperanza Ledesma was ordered to pay joint and several restitution with co-defendants of \$420,668.47. BEIC 39-40.
21. On March 8, 2024, BCL sent a letter to Netcycle stating that the revocation of its OTI license 021597NF will become effective March 29, 2024, unless Netcycle requests a hearing. BEIC 4-6.

III. DISCUSSION

An OTI's license is subject to revocation for willfully failing to comply with a provision of the Shipping Act or any other statute, a Commission order or regulation, or based on a determination by the Commission that the OTI is not qualified to provide intermediary services. 46 U.S.C. § 40903(a). In addition, an OTI's license is subject to revocation for a violation of any provision of the Shipping Act or any statute, a Commission order or regulation related to carrying on the business of an ocean transportation intermediary, or based on a Commission determination that the licensee is not qualified to render intermediary services. 46 C.F.R §§ 515.16(a)(1), (4).

The arguments in Netcycle's request for hearing are consistent with the record that Netcycle was established in 2006 and received an OTI license in 2008. Hearing Request at 1. While Ms. Ledesma blames the illegal activity on an ex-employee, she acknowledges that "as principal officer of corporation I assumed the responsibility in my fault although this meant in personal legal consequences and loss my position as president of the company" and further states that she "handed over the position of president" to Carlos Ledesma, Jr. Hearing Request at 1. However, Netcycle later states that its "QI and former President, Nadia Ledesma has been in the process of determining how best to respond on behalf of Netcycle in this matter including whether to retain counsel," so she is still actively involved. Motion to Accept Late Filing at 2.

Netcycle's Opposition contends:

Netcycle does not seek to dispute that Netcycle's listed President, Secretary and Qualifying Individual (QI) Ms. Nadia Ledesma, was indicted as alleged by the BOEIC. Further, there is no dispute that as Netcycle's President, Ms. Ledesma took personal responsibility for the issues that occurred in her business and, in order to resolve the matter expeditiously, agreed to plead guilty to a single count. Ms. Ledesma thereafter resigned her position as President with Mr. Carlos Ledesma Jr., her stepson, took over as President of Netcycle while Ms. Ledesma took a position as Director to assist Mr. Ledesma Jr. and ensure Netcycle maintained a QI. See Exhibit A. There is also no dispute that Ms. Ledesma failed to report the matter to the FMC under a mistaken belief that it was unnecessary. As discussed below, however, the circumstances of this matter do not warrant the extreme sanction of license revocation along with the significant harm to the community and employees that such a revocation would cause.

Opposition at 2. Netcycle relies on a Florida Secretary of State filing of an amended annual report "for the purpose of changing its registered office or registered agent, or both" showing Carlos Ledesma Jr as the registered agent and "PD" while Nadia Ledesma is listed as "D." Opposition, attachment.

BEIC contends that Netcycle "minimizes both the level of wrongdoing committed by Ms. Ledesma and the depth of the involvement of Netcycle in that criminal misconduct;" Netcycle does not contest the basis for the revocation; Ms. Ledesma's conduct can be imputed to Netcycle; and revocation is the appropriate sanction "given Ms. Ledesma's continued role with the company post-indictment and conviction and Netcycle's intimate involvement with her criminal conduct in this case." Reply at 2, 7-15.

Both parties rely on *Washington Movers*, where the Commission affirmed the revocation of an OTI license after the QI was convicted of unlawful export of defense articles and smuggling of goods. *In Re: Revocation of Ocean Transportation Intermediary License No. 017843 – Washington Movers, Inc.*, 1 F.M.C. 2d 5, 5-6 (FMC March 16, 2018). In that case, the QI's wife "was unaware of her husband's plans to ship weapons," and after the QI's arrest, "she used life insurance money, her children's tuition money, proceeds from selling gold, and loans from family" to pay carriers to release shipments to Washington Movers' clients. *Id.* at 6-7. The QI, however, remained involved with the company after his arrest. *Id.* at 7. The Commission found that "the unchallenged facts support imputing liability to Washington Movers" as the illegal acts were "within the scope of his employment;" Washington Movers failed to notify the Commission of criminal proceedings; and the QI's criminal conduct rendered the company "unqualified to render OTI services." *Washington Movers*, 1 F.M.C. 2d at 13-18. In deciding to revoke Washington Movers' license, the Commission considered the nature and extent of its conduct giving rise to suspension or revocation, its good faith and likelihood of complying with Commission regulations in the future, and the character and association of the proposed new QI. *Id.* at 20-21.

Similar to *Washington Movers*, here, the QI's criminal conviction, QI's continued involvement with the company, and nature and extent of the criminal conduct support the appropriateness of Netcycle's license revocation. The evidence shows that from April 2015 to 2018, Ms. Nadia Ledesma willfully participated in a criminal conspiracy with her husband and former co-owner and Netcycle warehouse manager, Carlos Ledesma, and others to export stolen outboard motors. BEIC 57-58. Evidence seized pursuant to a search warrant executed at Netcycle shows that Carlos and Nadia Ledesma used Netcycle to export nearly 600 stolen outboard engines to Mexico. BEIC 59. Netcycle emails, office phones, employees, warehouse, and office spaces were used in furtherance of the conspiracy. BEIC 60-61. Netcycle records indicate that the company charged \$480,197.68 for exporting the stolen engines from 2015 to 2018 and that most of the payments were in cash. BEIC 61. Ms. Ledesma received at least \$48,064.79 as proceeds of the offense. BEIC 61. Nadia Ledesma filled out documents that were fabrications and she submitted electronic export information based on the false bill of sale with a fabricated value of the engines. BEIC 62.

A plea agreement dated March 10, 2023, states that Nadia Esperanza Ledesma agrees to plead guilty to count 1 of the indictment, which charges her with conspiring with others to export boat engines and parts that were stolen. BEIC 25. Judgment in case number 1:22-CR-20269RNS(2), dated May 23, 2023, states that defendant Nadia Esperanza Ledesma pleaded guilty to count 1 of the indictment, 18 U.S.C. § 371 - Conspiracy to export stolen vessel parts and to smuggle goods from the United States and that counts 2 through 10 are dismissed. BEIC 34. Ms. Ledesma was sentenced to imprisonment for 18 months, starting May 15, 2025, followed by one year of supervised release, and ordered to pay joint and several restitution with co-defendants of \$420,668.47. BEIC 35-40.

The record supports finding that Netcycle violated 46 C.F.R. § 515.16(a)(1) of the Commission's regulations by violating the Shipping Act, or any other statute or Commission order or regulation because Netcycle's QI was indicted and convicted of violating 18 U.S.C. § 371, conspiracy to export stolen vessel parts and to smuggle goods from the United States. BEIC 34. Netcycle's QI was acting within the scope of her employment while committing the

illegal acts, which spanned three years and utilized Netcycle's corporate resources. Therefore, it is appropriate to impute the QI's actions to the corporation. Thus, the record supports a finding that Netcycle violated the Shipping Act or any other statute related to carrying on the business of an ocean transportation intermediary.

The record also supports finding that Netcycle violated 46 C.F.R. § 515.16(a)(4), by not being qualified to render intermediary services due to the conviction of its QI. "An ocean transportation intermediary is fully responsible for the acts and omissions of any of its employees and agents that are performed in connection with the conduct of the ocean transportation intermediary's business." 46 C.F.R. § 515.4(b)(3). While Netcycle seeks, in its arguments in this proceeding, to minimize the QI's involvement in the illegal activity, her factual proffer is more detailed and credible, showing significant participation in the extensive illegal conduct. Therefore, BEIC has established that Netcycle's QI lacks the necessary character to render OTI services.

Additionally, the record supports finding that Netcycle violated 46 C.F.R. § 515.20(e), by failing to report material changes to the Commission within thirty days. Pursuant to this rule, material changes include "any criminal indictment or conviction of a licensee, QI, or officer." 46 C.F.R. § 515.20(e). The evidence includes a letter from the BCL Acting Director stating that "[a]t no time did you inform the Commission of your criminal indictment or subsequent conviction." BEIC 5. While this statement is not under oath, it is reliable as a business record. Moreover, the record does not contradict the statement. Therefore, the evidence supports a finding that Netcycle failed to report the criminal indictment or conviction to the Commission.

Accordingly, the record supports a finding that Netcycle and its QI, Nadia E. Ledesma, failed to report to the Commission changes in material facts, contrary to 46 C.F.R. § 515.20(e) of the Commission's regulations; violated the Shipping Act, or any other statute related to carrying on the business of an ocean transportation intermediary, contrary to the Commission's regulations at 46 C.F.R. § 515.16(a)(1); and lack the necessary character to render OTI services contrary to the Commission's regulations at 515.16(a)(4). The remaining issue is the appropriate penalty.

Netcycle asserts that "license revocation is not an automatic penalty for a violation nor is it the only potential remedial action that the Commission can take in response to a violation," citing the initial decision in *Stallion Cargo*. Opposition at 2-3 (citing *Stallion Cargo, Inc.-Possible Violations of Sections 10(a)(1) and 10(b)(1) of the Shipping Act of 1984*, 2001 WL 379928, at *17 (ALJ Mar. 15, 2001) ("*Stallion Cargo (ALJ)*") aff'd in part and vacated in part 2001 WL 35725562 (FMC Oct. 18, 2001) ("*Stallion Cargo (FMC)*"). Netcycle is correct that license revocation is not an automatic or the only penalty.

In *Stallion Cargo*, the respondent violated the Shipping Act by "misdescribing cargoes tendered to vessel-operating common carriers on 15 occasions and by failing to charge its applicable tariff rates on 152 occasions." *Stallion Cargo (FMC)*, 2001 WL 35725562, at *2. The Administrative Law Judge had found that license revocation was unwarranted, however, the Commission found that "Respondent does not possess the necessary character to render OTI services. We believe that license revocation is an appropriate sanction in this instance." *Id.* at *22. The Commission stated that this was "a harsh sanction, resulting in an NVOCC being put out of business;" however, the Commission also stated that the "shipping community should be protected from those who choose not to comply with the Shipping Act's licensing requirements." *Id.* at *23.

In deciding to revoke Washington Movers' license, the Commission considered the nature and extent of its conduct giving rise to suspension or revocation, its good faith and likelihood of complying with Commission regulations in the future, and the character and association of the proposed new QI. *Washington Movers*, 1 F.M.C. 2d at 20-21. Here, the nature and extent of the conduct is significant, including the export of nearly 600 stolen outboard engines over the course of three years by multiple members of Netcycle. It does not appear that Netcycle made any efforts to comply with Commission regulations after the guilty plea and even after this proceeding was filed, has minimized its conduct and failed to follow Commission rules, so that the good faith and likelihood of complying with Commission regulations is low. The record does not include any information about the character and association of the proposed new QI, so that element is neutral – not weighing for or against revocation. However, given the findings on the first two factors, revocation is the appropriate remedy and is consistent with the penalties imposed on Stallion Cargo and Washington Movers.

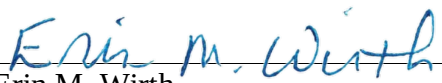
Accordingly, the evidence supports a finding that Netcycle failed to report a material change; that Netcycle does not have a qualified QI; and that Netcycle violated the Shipping Act, or any other statute related to carrying on the business of an ocean transportation intermediary. Accordingly, pursuant to 46 U.S.C § 40903(a) of the Shipping Act and 46 C.F.R §§ 515.16(a)(1), (4), and 515.20(e) of the Commission's regulations, Netcycle's OTI license is revoked.

IV. ORDER

Upon consideration of the evidence and arguments in the record, and for the reasons stated above, it is hereby

ORDERED that Netcycle's ocean transportation license No. 021597 be **REVOKED**. It is

FURTHER ORDERED that Netcycle cease and desist any and all ocean transportation intermediary activities.


Erin M. Wirth
Chief Administrative Law Judge